

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 22, 2026
8:30 a.m.

6. TYLER JACKSON V. DEBORAH PUMARINO

SFL20150111

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on May 13, 2026, to modify child custody. The RFO also included a request for temporary emergency orders and an order shortening time. On May 13, 2026, the court granted the request for temporary emergency orders³ and issued an order shortening time. The court ordered that pending the hearing, Respondent shall have temporary sole physical custody of the parties' child, TJ (age 12) and that Petitioner shall have no visitation with TJ. The court also ordered Respondent to serve the instant RFO upon Petitioner no later than May 18, 2026; and ordered Petitioner to file a Responsive Declaration no later than May 22, 2026. Proof of service filed May 15, 2026, shows the RFO and temporary emergency orders (issued May 13, 2026) were both personally served upon Petitioner that same day.

A hearing on the instant RFO was originally set for May 27, 2026. On that date, the court referred the parties to a CCRC session set for June 30, 2026, and amended the temporary emergency orders as follows: (1) Petitioner is authorized to have phone/Facetime contact with TJ; and (2) Petitioner shall have non-professional supervised visitation with TJ two times per week for up to two hours per visit.

Petitioner has filed multiple documents in response to the RFO. On May 21, 2026, Petitioner submitted two separate filings: (1) a Responsive Declaration (Judicial Council form FL-320), signed by counsel on May 13, 2026, with Attachment One (IID Proof) attached thereto; and (2) an Addendum to FL-320, signed by counsel on May 13, 2026, with Attachment Two (Voluntary Monitoring Proof) attached thereto. Separate proofs of service, both filed May 21, 2026, shows that each of the aforementioned documents were personally served upon Respondent on May 13, 2026. On June 18, 2026, Petitioner submitted additional proofs of service showing that the FL-320 Response, Attachment One, and Attachment Two were personally served upon Respondent on June 18, 2026.

On May 26, 2026, Petitioner filed a Second Addendum to FL-320 with Attachments Three (Updated Proof of Voluntary Monitoring), Four (Sober Link Test Results), and Five (DUI Class Enrollment) attached thereto. To date, there is no proof of service in the court's file for Petitioner's May 26, 2026, filing.

The court is in receipt of a CCRC report dated July 06, 2026, a copy of which was mailed to both parties per the Clerk's Certificate of Mailing filed July 07, 2026.

On July 15, 2026, Respondent filed a Supplemental Declaration regarding the CCRC report. Proof of service filed July 15, 2026, shows the Supplemental Declaration was electronically served upon Petitioner that same day. In her supplemental declaration,

³ In an effort to create a clear record, the court notes there was a separate hearing held on May 13, 2026, related to the Respondent's RFO filed April 24, 2026. At the May 13 hearing, the court denied the April 24, 2026, RFO and terminated the temporary emergency orders that were then in place (said temporary emergency orders were imposed on April 24, 2026).

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Respondent indicates she feels the alcohol restrictions against Petitioner are not stringent enough because he can “get past” them (e.g., blow into the ignition interlock device and then drink while driving). Respondent further states she does not agree that any alcohol restrictions should apply to her. The court notes, however, that the alcohol restrictions were an agreement reached voluntarily between the parties at the CCRC session.

On July 17, 2026, Petitioner filed a Supplemental Declaration regarding the CCRC report, a copy of which was electronically served upon Respondent that same day according to the proof of service, also filed July 17, 2026. Petitioner disputes Respondent’s claims that he drinks and drives. Petitioner states he is eager to regain partial custody of the parties’ child and willing to do whatever it takes to comply with court orders related to his substance abuse issue.

The court finds that the agreements and recommendations of the CCRC report are in TJ’s best interest and therefore adopts them as the orders of the court. Additionally, the court will set a review hearing for October 21, 2026, and order the parties to each file a supplemental declaration no later than October 14, 2026, to update the court on child custody issues.

TENTATIVE RULING #6: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS WITHIN THE CCRC REPORT DATED JULY 06, 2026, TO BE IN THE BEST INTEREST OF THE PARTIES’ CHILD AND SO ADOPTS THEM AS THE ORDERS OF THE COURT. THE COURT ALSO SETS A REVIEW HEARING AT 8:30 A.M., WEDNESDAY, OCTOBER 21, 2026, IN DEPARTMENT 12. THE PARTIES SHALL EACH FILE A SUPPLEMENTAL DECLARATION ON OR BEFORE OCTOBER 14, 2026.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.